



ROLLING VOYAGE'S TERMS & CONDITIONS

Rolling Voyage is sharing these Terms & Conditions to clarify how services are provided and ensure a smooth, transparent travel planning experience.

These Terms and Conditions ("Agreement") govern the relationship between Rolling Voyage, an independent travel advisor ("The Travel Advisor" or "we"), on the one hand, and you, the purchaser of travel services or lead traveler ("The Client" or "you"), on the other.

1. Use of Travel Advisor's Services. – You represent and warrant that:

- a. You are at least 18 years of age and are authorized to enter into this Agreement and make travel bookings with Travel Advisor;
- b. The information you provide (whether for yourself or on behalf of others) is true, complete and accurate, and you agree to provide updated information throughout your engagement with Travel Advisor; and
- c. You will comply with these Terms and Conditions and all applicable terms and conditions of travel suppliers and partners involved in your booking.

2. Independent Travel Advisor

- a. The Travel Advisor is an independent travel advisor affiliated with Fora Travel, Inc. ("Fora") and operates independently. The Client understands and agrees that: (i) Travel Advisor is not an employee, representative, or agent of Fora; (ii) Fora operates solely as a technology provider and host agency and is not a travel service provider; (iii) The Client shall have no claim against Fora for losses, damages, cancellations, booking disputes, or services provided by Travel Advisor; and (iv) Fora is not a party to this Agreement for any purpose. The Client expressly waives any claims, causes of action, demands, or liabilities against Fora arising from or relating to travel arrangements, advisor services, supplier performance, cancellations, or disputes.

3. Services and Planning Fees

- a. The Travel Advisor provides travel planning and advisory services, which may include researching, coordinating, recommending and booking travel arrangements such as accommodation, transportation, tours, experiences, restaurant reservations and other travel-related services agreed by the parties.
- b. The Travel Advisor will charge a non-refundable planning fee for professional services. Any planning fee shall be communicated and agreed in writing prior to commencement of work.
- c. Planning fees:
 - Are payable before services begin;
 - Are independent from supplier costs and sale of travel services prices;
 - Compensate The Travel Advisor for time and professional services rendered; and
 - Are fully non-refundable regardless of booking outcome.

4. Suppliers and The Client's Responsibility

- a. The Travel Advisor acts solely as an intermediary and liaison between The Client and third-party travel suppliers.
- b. The Client acknowledges that suppliers identified in travel confirmations and documentation are independently responsible for providing travel services purchased.
- c. The Travel Advisor may utilize third-party booking channels, reservation platforms or supplier systems.
- d. The Client remains responsible for selecting suppliers and conducting independent assessments of suitability and preferences.
- e. The Travel Advisor makes no guarantees regarding:
 - Supplier rates;
 - Availability;
 - Quality of services;
 - Fulfillment of special requests; or
 - Supplier performance.
- f. The Travel Advisor shall not be liable for supplier actions, omissions, schedule changes, cancellations, operational failures, delays, overbooking situations or force majeure events.

5. Travel Bookings

- a. **Rates:** All quoted pricing is in USD unless otherwise indicated and remains subject to change without notice until confirmed. The Client understands that suppliers frequently use dynamic pricing models and rates may fluctuate based on:
 - Demand;
 - Inventory;
 - Currency Exchange; and
 - Supplier Policies.
- b. **Currency Fluctuations:** The Client acknowledges that exchange rate fluctuations may affect final reservation costs.
- c. **Confirmed Bookings:** All reservations remain subject to supplier confirmation and availability.
- d. **Personal Information:** The Client authorizes Travel Advisor to use personal information necessary to process reservations and requested travel services.
- e. **Payment:** The Client agrees to make payment promptly when due either: (i) directly to suppliers; or (ii) through Fora where payment processing is performed on behalf of suppliers.
- f. **Credit Card Authorization; Disputes and Chargebacks:** The Client may choose to keep a credit card on file with The Travel Advisor for any charge of travel services and associated amounts that are expressly authorized by The Client. The Client further certifies that it is an authorized user of any credit card provided to The Travel Advisor. THE CLIENT AGREE NOT TO FILE ANY DISPUTE WITH THE BANK OR CREDIT CARD COMPANY TO AVOID OR VIOLATE ANY BOOKING TERMS AND CONDITIONS OF THE TRAVEL ADVISOR OR OUR TRAVEL SUPPLIERS OR PARTNERS, INCLUDING CANCELLATIONS OR CHANGES OF ITINERARY OR ARRANGEMENTS FOR REASONS BEYOND OUR CONTROL, UNLESS THE PRODUCT OR SERVICES PURCHASED WERE NEVER PROVIDED OR GROSSLY MISREPRESENTED. The Client agrees to notify The Travel Advisor immediately if any products or services purchased are not as expected and to give The Travel Advisor a reasonable opportunity to assist in finding an acceptable resolution with the supplier responsible for providing the product or services.
- g. **Independent Travel Arrangements:** The Travel Advisor shall not be responsible for costs incurred in connection with arrangements made outside of Travel Advisor's services.
- h. **Nonrefundable Bookings; Modifications and Cancellation Fees:** The Client acknowledges and accepts supplier cancellation, modification and refund rules. The Client shall provide no less than forty-eight (48) hours written notice for requested changes or cancellations. The Travel Advisor shall not be responsible for penalties resulting from untimely requests. Any fees, losses or expenses incurred due to modification or cancellation may be passed through to The Client.

i. **Travel Insurance:** Travel insurance is strongly recommended and is not included unless expressly stated and purchased by The Client. Without appropriate travel insurance, cancellation penalties, medical expenses, travel interruptions and other losses may result in financial loss to The Client.

6. Government Identification and Travel Advisories:

a. **Denial of Entrance:** The Client acknowledges sole responsibility for ensuring compliance with entry requirements. Denied entry, denied boarding or immigration restrictions may result in complete financial loss and do not entitle The Client to refunds.

b. **Passports:** The Client is responsible for ensuring all travel documents are accurate and valid. Certain destinations require passports to remain valid for at least six (6) months after travel completion. Visa requirements remain The Client's responsibility.

c. **Traveling with Minors:** The Client is responsible for obtaining any required authorizations and travel permissions for minors.

d. **Travel Advisories:** Travel may involve risks including health, political, security or operational risks. Changes in travel advisories shall not override supplier cancellation or refund policies. The Client is responsible for reviewing advisories issued by authorities in the Dominican Republic and destination countries. Participation in travel constitutes acceptance of associated risks.

7. Liability; Damages; Force Majeure

a. THE TRAVEL ADVISOR ACTS SOLELY AS AN INTERMEDIARY FOR THIRD-PARTY SUPPLIERS AND SHALL NOT BE LIABLE FOR PERSONAL INJURY, PROPERTY DAMAGE, DELAYS, SERVICE FAILURES, CANCELLATIONS, PRICE CHANGES, SUPPLIER INSOLVENCY OR OTHER SUPPLIER-RELATED EVENTS. THE CLIENT RELEASES TRAVEL ADVISOR FROM CLAIMS ARISING FROM THIRD-PARTY SERVICES.

b. NOTWITHSTANDING ANYTHING TO THE CONTRARY, THE CLIENT AGREES THAT ANY RECOVERY AGAINST THE TRAVEL ADVISOR SHALL BE LIMITED TO THE AMOUNT OF COMMISSIONS AND FEES ACTUALLY RECEIVED BY THE TRAVEL ADVISOR.

c. The Travel Advisor shall not be liable for failure or delay caused by events beyond reasonable control including natural disasters, civil unrest, pandemics, governmental action, war, transportation interruptions or supplier disruptions. THE PURCHASE OF TRAVEL INSURANCE IS HIGHLY RECOMMENDED.

8. General

a. **Modifications:** The Travel Advisor reserves the right to amend this Agreement at any time. Updated versions of this Agreement are effective immediately upon notice to The Client.

b. **Governing Law; Venue:** This Agreement shall be governed by the laws of the Dominican Republic. The parties consent to the exclusive jurisdiction of the courts of Santo Domingo, Dominican Republic.

c. **Third Party Beneficiaries:** This Agreement is intended solely for the benefit of The Travel Advisor and The Client.

d. **Timeliness; Claims; Class Action Waiver:** Any claim against the Travel Advisor must be brought within six (6) months after the completion date of the trip, and not thereafter. THE TRAVEL ADVISOR SHALL NOT IN ANY EVENT BE LIABLE FOR ANY DAMAGES OTHER THAN COMPENSATORY DAMAGES, AND THE CLIENT WAIVES ANY RIGHT TO CLAIM PUNITIVE, EXEMPLARY, OR CONSEQUENTIAL DAMAGES. THE CLIENT AGREES THAT ANY CLAIMS MAY ONLY BE BROUGHT IN THEIR INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS ACTION, COLLECTIVE ACTION, PROPOSED OR PURPORTED CLASS ACTION, OR OTHER REPRESENTATIVE PROCEEDING, REGARDLESS OF THE FORM OF ACTION.

e. **Severability:** If any provision is determined unenforceable, remaining provisions shall remain effective.

f. **Headers:** Section headings are for convenience only and do not affect interpretation.

g. **Entire Agreement:** This Agreement constitutes the entire agreement between the parties.

h. **Acceptance:** By booking travel services, paying applicable fees, or engaging in The Travel Advisor's services, The Client agrees to these Terms and Conditions.

ACCEPTED and **AGREED** to by

By typing your name below, you agree to the terms and conditions above.

Print your full legal name:

Today's Date:
